
Final Correspondence — Employer's Final Account EFA-KFI2-001

Kestrel Flyover Interchange Project — Package KFI-2

Document Reference:	FCR-KFI2-001
Date:	29-Sep-2021
Contract No.:	KMDA/KFI2/CW/2019-04
From:	Project Manager, Rennick Builders Ltd.
To:	Engineer, Ashgrove Infrastructure Consultants
CC:	Kaldera Metropolitan Development Authority

Subject: Final Correspondence — Employer's Final Account EFA-KFI2-001

We refer to Employer's Final Account EFA-KFI2-001 dated 15-Sep-2021, determining a net balance of KLD 1,152,600 due to us, including full release of retention.

We do not accept the rejection of our KLD 320,000 demobilisation cost claim, nor the valuation of work and materials at KLD 15,800,000 rather than the KLD 17,200,000 claimed in CFC-KFI2-001, and we reserve our position on both points. We note the Engineer's acceptance of a 5-day credit for the Ramp C utility relocation delay against liquidated damages, though we consider a longer credit would have been justified given the delay's effect on our wider sequencing.

Notwithstanding the above, we do not intend to escalate this matter further at this time, and confirm receipt of the net balance of KLD 1,152,600 will be treated as final settlement of the amounts addressed in EFA-KFI2-001, without prejudice to our reserved position should we elect to pursue it under the Contract's dispute resolution provisions at a later date.

We confirm all Contractor's Equipment has been removed from Site and note the Engineer's confirmation that no further outstanding matter affects this account.

Regards,
Project Manager

Rennick Builders Ltd.